

Kunwar Sain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 January 2019 · Writ-C No. 43039 of 2018 · Writ - C No. 43039 of 2018 · **Writ disposed; petitioners relegated to Supply Code cl. 6.5.**

HEADNOTE

Five consumers sought quashing of bill-cum-disconnection notices dated 2 October 2018 demanding arrears from 1998, on the plea that village electrification was completed only on 31 May 2017. The Division Bench held that clause 6.5 of the Electricity Supply Code, 2005 furnishes an efficacious alternative remedy for disputed bills, and disposed of the Article 226 petition with liberty to apply to the competent authority, which was to decide in accordance with law expeditiously.

FACTUAL SUMMARY

Five petitioners challenged electricity bill-cum-disconnection notices dated 2 October 2018 requiring them to pay alleged arrears from 1998 of Rs 72,152, Rs 65,560, Rs 89,572, Rs 89,715 and Rs 89,465. They contended that village electrification was completed only on 31 May 2017, so the distribution licensee could not bill for any earlier period. Counsel for the second respondent accepted notice. The petition came up after two listings as fresh.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bills — alternative remedy

HOLDING

A consumer who disputes the accuracy of an electricity bill has an efficacious alternative remedy under clause 6.5 of the Electricity Supply Code, 2005 (payment under protest of the amount claimed or six-month average, whichever is less, and complaint to the competent authority). The High Court will not entertain a writ under Article 226 until that remedy is invoked; the petition is disposed of with liberty to apply under clause 6.5, the authority to decide in accordance with law expeditiously. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Five consumers sought quashing of bill-cum-disconnection notices dated 2 October 2018 demanding arrears from 1998, on the plea that village electrification was completed only on 31 May 2017.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 2 OCTOBER 2018 BILLS DEMANDING CHARGES FROM 1998 WERE ILLEGAL BECAUSE VILLAGE ELECTRIFICATION WAS COMPLETED ONLY ON 31 MAY 2017

Left to the competent authority under clause 6.5; no merits finding on the arrears or disconnection notices. ¶ 1